

CITY OF CHEYENNE – CITY COUNCIL AGENDA ITEM SHEET

DATE OF COUNCIL MEETING: April 14, 2014

TYPE OF DOCUMENT: (☒ ORDINANCE) (☐ RESOLUTION) (☐ PRELIMINARY PLAT/
PRELIM PUD ZONE CHANGE) (☐ LEASE/CONTRACT) (CHANGE ORDER/CONTRACT
MODIFICATION) (☐ CONSIDER BID) (APPLICATIONS/LICENSES/PERMITS)
(APPOINTMENTS) (☐ ANNOUNCEMENTS/REPORTS/MOTIONS) (☐ OTHER)

SPONSORS: (ORDINANCE OR RESOLUTION) Dicky Shanor

EXACT WORDING FOR AGENDA: An Ordinance amending the Cheyenne Unified
Development Code (UDC), to provide for an Alternative Compliance for reduced residential
minimum front setback.

(1% Sales Tax Funding/Years) N/A

(Other Funding _____) (Grant _____)

CONTACT PERSON: Brandon Cammarata PHONE: 637-6271 DEPT: Planning/Development

OTHER CITY DEPARTMENT AFFECTED: _____

OTHER GOV'T AGENCIES AFFECTED: N/A

FINANCIAL IMPACT PROPOSED OR CONDITIONS WHICH AFFECT CITY: N/A

CONTRACT TERM: N/A STARTING DATE: N/A

	YES	NO	N/A
Is funding budgeted?	(☐)	(☐)	(☒)
Were Bids called for?	(☐)	(☐)	(☒)
Affected parties notified of Council procedure and dates?	(☒)	(☐)	(☐)
Has bond, insurance or other security been arranged?	(☐)	(☐)	(☒)
Have legal descriptions been checked?	(☒)	(☐)	(☐)

Agenda Item approved / reviewed by :

Risk Mgr (☐) City Attorney (☐) Dept. Head (☒)

General Comments: On April 7, 2014 the City of Cheyenne Planning Commission recommended
approval of the text amendment by a unanimous vote of 6 to 0. See the attached Staff Report for
more information.

Submitted by: Brandon Cammarata Title: Planning & Dev Director Date: April 8, 2014

UPON PASSAGE OF THE AGENDA ITEM, COPIES SHOULD BE SENT TO:

Development Office City Clerk's Office

UDC Text Amendment (PLN-140003)
Front Setback – Alternative Compliance
March 28, 2014

Staff Report:

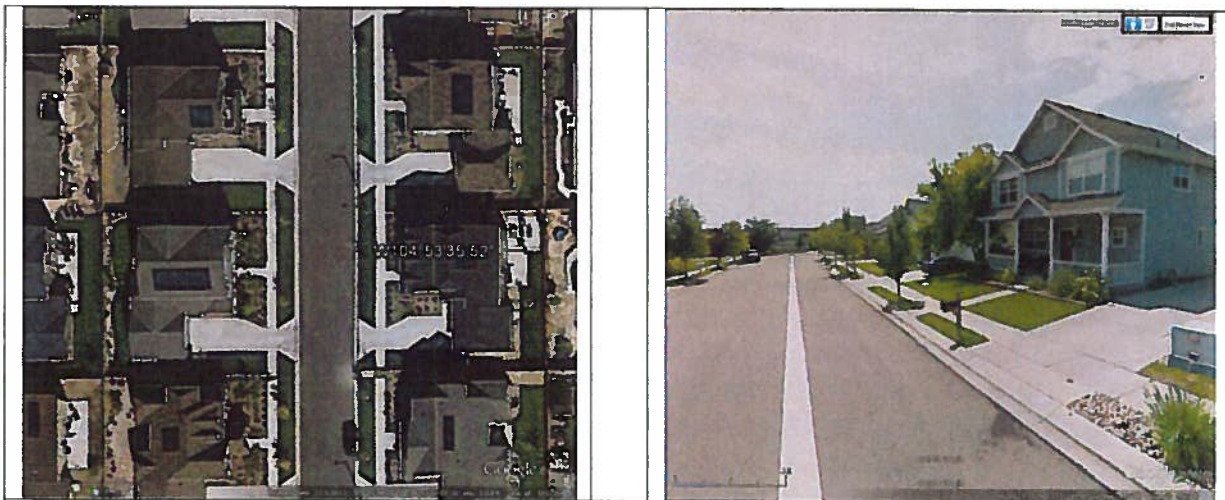
Staff identified this amendment to the planning commission, in petition form, on March 17, 2014 and the Planning Commission affirmed proceeding with the text amendment in accordance with UDC text amendment (2.4.1.b.3).

Issue:

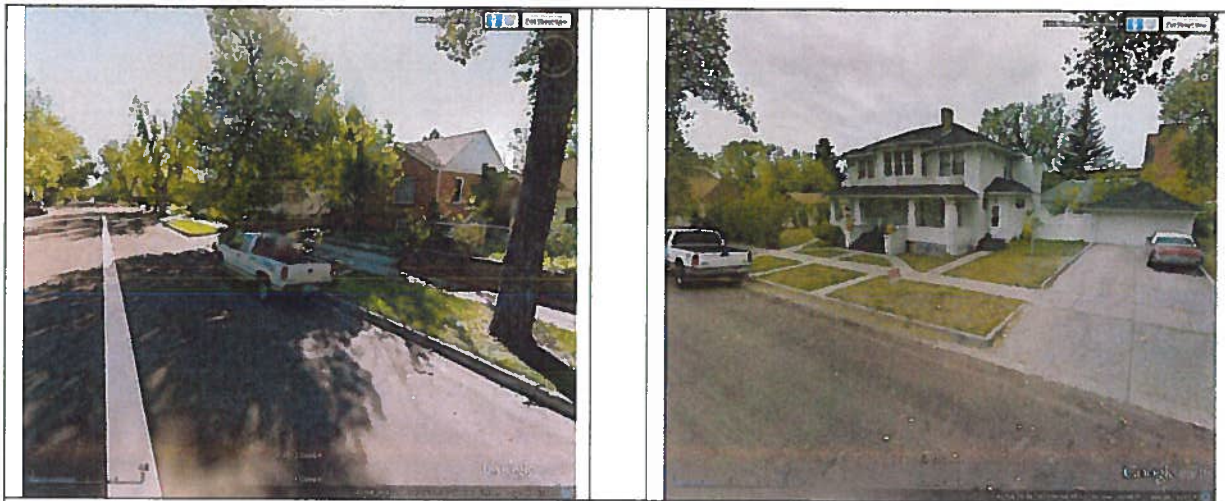
Staff is looking to add some additional flexibility for new single-family development by providing for an *Alternative Compliance (2.3.4.b.1)* to allow the front setback to be 15'; as opposed to the standard of 25' when the garage placement, access and other standards are achieved for Compact & Mixed –Density Neighborhoods (Compact) (6.6.4).

This topic has been mentioned as a means to provide for different single-family options which include options for smaller lots and allow for greater flexibility when an area may be geographically constrained. It is an option that was often developed in Cheyenne and communities across the country prior to WWII. It is also a development option that has reemerged in other communities more recently.

The value of this type of amendment has been known for some time by anecdotal conversations with various developers and general observation of the development pattern being allowed elsewhere. This text amendment request is germane to a proposed subdivision to be introduced April 7 which is a geographically constrained infill subdivision. This sort of adjustment is relatively simple to make and is substantially consistent with the purpose and intent of the UDC and PlanCheyenne.



Above: Typical new development with a reduced front setback but maintain a larger garage setback.(Google Street views)



Above: Typical historic development in Cheyenne with a reduced front setback, again with garage setback further or alley loaded.(Google Street views)

In general, the Compact standards are able to address issues that arise when uses are in close proximity to each other and the public street. For example the Compact standards address the setback of a garage independent from the setback of the house because a garage and driveway have different functional and visual impacts than does just a house.

In addition to using the existing framework of the Compact standards, the proposal uses the existing framework of an *Alternative Compliance (2.3.4.b.1)*, which is an administrative approval.

Review Criteria:

1. The amendment is in accordance with the general goals and policies of the Comprehensive Plan.
 - a. Principle 1.4: Revitalization and infill in our urban core will provide choices for housing, employment, and services in our older neighborhoods and districts.

Policy 1.4.a: Infill Opportunities

The community will support infill in existing neighborhoods, but ensure that infill is compatible with neighborhoods and districts through design standards (e.g., to address scale, height, and character of infill as it relates to existing development).

- b. Principle 2.3: Our future urban neighborhoods will contain a mix of housing types, styles, and densities.

Policy 2.3.a: Mix of Housing Types

The community will strongly encourage using a variety of housing types and models, sizes, and price ranges in new neighborhoods to provide expanded housing options.

Incorporating a mix of housing types at both the neighborhood scale and the block scale helps create varied and interesting streetscapes and a diverse community.

2. The amendment is consistent with the Wyoming Statutes, and specifically the Municipal Planning and Zoning Statutes.
 - a. The proposed amendment is in accordance with the Comprehensive Plan and therefore is consistent with the referenced statutes regarding zoning to be consistent with or supported by the comprehensive plan.
3. The amendment promotes the general health, safety and public welfare.
 - a. The amendment would create opportunities for more diverse housing options, increasing opportunities for housing, in locations that are more urban in context, typically nearby existing utilities and service areas.

Proposed Amendment wording:

6.6.3 General Residential Design

Alternative Compliance. Detached Dwelling Lot Types and Semi-Attached Dwelling Lot Types may propose a principal building front setback of 15' when the standards in *Compact and Mixed-Density Neighborhood Design* (6.6.4) and access width standards in Table 4-13 are met. In existing neighborhoods the front setback shall not be less than the context of adjacent detached or semi-attached structures.

Staff Recommendation:

Recommend approval of the Development Code text amendment establishing alternative compliance for reduced front setback for residential development.

Planning Commission Recommendation 04/07/14: Planning Commission Recommended approval of the text amendment with a unanimous 6-0 vote.

Approved as to
form only:
D. N. Ric
Date: April 7, 2014

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE AMENDING THE CHEYENNE UNIFIED DEVELOPMENT CODE (UDC), TO PROVIDE FOR AN ALTERNATIVE COMPLIANCE FOR REDUCED RESIDENTIAL MINIMUM FRONT SETBACK."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That on December 5, 2011 the Cheyenne Planning Commission unanimously recommended approval of the "Cheyenne Unified Development Code (UDC)".

Section 2. That on January 23, 2012 the Governing Body of the City of Cheyenne unanimously approved the UDC (Ordinance No. 3943) with an effective date of April 30, 2012.

Section 3. That on April 7, 2014, the City of Cheyenne Planning Commission conducted a public hearing, reviewed the proposed UDC amendment that is the subject of this ordinance and recommended approval of the amendment.

Section 4. That under UDC subsection 6.6.3 a new subsection "d" is added to read:

Alternative Compliance. Detached Dwelling Lot Types and Semi-Attached Dwelling Lot Types may propose a principal building front setback of 15' when the standards in *Compact and Mixed-Density Neighborhood Design* (6.6.4) and access width standards in Table 4-13 are met. In existing neighborhoods the front setback shall not be less than the context of adjacent detached or semi-attached structures.

Section 5. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this Ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 6. That, this Ordinance shall be in full force and effect upon its approval and publication.

FIRST
READING: _____

SECOND
READING: _____

THIRD AND FINAL
READING: _____

Richard L. Kaysen, Mayor

(SEAL)

ATTEST:

Carol Intlekofer, City Clerk